

		adverse party rather than on behalf of their employer.” (Lieberman, supra, 194 Cal.App.3d at p. 401.) This is a lemon law case. Here, the Subject Vehicle’s purchase and service are the central issues of this case. At least nine (9) of the identified witnesses reside some 350 miles from Orange County, in Stanislaus County. They are all knowledgeable about and are anticipated to testify regarding the sale, service presentations, service, repair and repair history of the Subject Vehicle as it relates to Plaintiffs’ claims in this action. Importantly, Defendant anticipates these witnesses being called by Plaintiffs in this case, not by Defendants. The witnesses are almost exclusively service technicians, who are paid when they work. Any witness fees would not come close to compensating these mechanics for missed work. To the extent that trial is held in Stanislaus County, the witnesses could conceivably miss mere hours of work, versus days if the trial is held in Orange County. The material case witnesses would have to either drive 12 hours round trip, incur the expense of flying, incur the expense of a hotel in Orange County. Moreover, each of these automotive dealer employees would be missing one or more full days of work and associated income if forced to attend trial in Orange County. As there is no opposition to the instant motion, these facts and contentions are undisputed. Thus, change of venue appears appropriate for the convenience of witnesses. While Defendant FCA’s principal place of business is in Orange County, there is no other connection to this county and FCA does not oppose the instant motion. Thus, change of venue to Stanislaus County appears appropriate in the promotion of justice as there is very little relationship to Orange County. Based upon the foregoing, Defendant’s motion is GRANTED. All future dates in this action are hereby VACATED. Moving Party to give notice.
105.	2023-1318579 Selter v. California Eastern Star Foundation	The Court grants specially appearing Defendant Eastern Star Home dba Senior Living Community’s (erroneously sued as California Eastern Star Foundation dba Yorba Linda Senior Living) unopposed Motion to quash service of the Summons and Complaint.

		Without valid service of summons, the court never acquires jurisdiction over defendant. Hence, the statutory ground for the motion to quash is that the court lacks jurisdiction over the defendant. [CCP § 418.10(a)(1); see <i>Kremerman v. White</i> (2021) 71 Cal.App.5th 358, 371—“[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void” (internal quotes and citation omitted).] “When a defendant challenges the court's personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove ... the facts requisite to an effective service.” [<i>Summers v. McClanahan</i> (2006) 140 CA4th 403, 413; see <i>Lebel v. Mai</i> (2012) 210 Cal.App.4th 1154, 1163.] Proving the existence of jurisdiction is always plaintiff's burden. Therefore, even though defendant is the moving party on a motion to dismiss, the burden is on plaintiff to show valid service within the statutory period. [<i>Dill v. Berquist Const. Co., Inc.</i> (1994) 24 Cal.App.4th 1426, 1439-1440.] Effecting service on a corporation requires delivery of summons and complaint to some person on behalf of the corporation. [CCP § 416.10; <i>Dill v. Berquist Const. Co., Inc.</i> (1994) 24 Cal.App.4th 1426, 1437] Service may be made upon “the president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, [or] a general manager.” [CCP § 416.10(b)] Service may also be made upon “a person authorized by the corporation to receive service of process.” [CCP § 416.10(b).] Here, the Proof of Service on Moving Defendant was never filed, but it is included as Exhibit A to the Motion. Plaintiff's Proof of Service asserts that the process server left the Summons and Complaint with a “Cindy Alderson”. (Ortiz Decl., ¶ 2, Exhibit A.) Ms. Anderson is not the agent for service of process or any identified on the Defendant's Statement of Information filed with the California Secretary of State. (Decl. Ortiz ¶ 3, Exhibit B.) It is Plaintiff's burden to show that Ms. Anderson has authority to accept service of the Summons and Complaint on
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		behalf of Defendant. Plaintiff chose not to oppose this Motion and thus has not met that burden. Thus, the Motion is granted. Specially appearing Defendant is ordered to serve notice of this Order.
107.	2023-1310721 Fulton v. Swinney	Defendants Colleen Swinney (“COLLEEN”) and Pickford Real Estate, Inc. dba Berkshire Hathaway HomeServices California Properties (“BERKSHIRE”) (collectively “Defendants”) demur to the third cause of action for fraudulent concealment alleged in Plaintiffs Bryan and Elle Fulton’s (“Plaintiffs”) First Amended Complaint (“FAC”). Defendants contend the fraudulent concealment claim is insufficiently pled because Plaintiffs fail to allege specific facts to support their conclusions that they, the listing agent and broker, were aware of “latent water intrusion defects which were allegedly concealed and not discovered until plaintiffs began upgrading the Property and retained a mold expert”; that the allegations that COLLEEN is “the sellers’ daughter-in-law” and “had spent significant time at the [Property] over the years” and used the barbeque and backyard are insufficient; that the Complaint is devoid of any specific facts that Defendants knew about the latent defects merely because they worked with Sellers to prepare the Property for listing and sale; and the FAC fails to allege which specific defendants misrepresented and/or concealed which specific latent defects (See FAC, ¶¶ 24, 28-30, and 52.) “The elements of a claim for fraudulent concealment require the plaintiff to show that: ‘(1) the defendant ... concealed or suppressed a material fact, (2) the defendant [was] under a duty to disclose the fact to the plaintiff, (3) the defendant ... intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff [was] unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Prakashpalan v. Engstrom, Lipscomb & Lack (2014) 223 Cal. App. 4th 1105, 1130.) “The duty to disclose may be established where there is a confidential relationship between the parties, defendant has